

21STCV41026 21STCV41026

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C08%2F24%2F2026

Source SHA-256: 639e3a6e1aac5d4001f6c85e76463a49073dc520aeb720f05816900dbd949e9d

Case Number: 21STCV41026 Hearing Date: August 24, 2026 Dept: F46

TENTATIVE RULING

MOTION TO BIFURCATE LIABILITY AND DAMAGES

The motion to bifurcate is GRANTED, subject to the limitations stated below.

Code of Civil Procedure section 598 authorizes the Court, when the convenience of witnesses, the ends of justice, or the economy and efficiency of the litigation would be promoted, to order that the trial of any issue or part of an issue precede the trial of another issue or part thereof. The principal objective of bifurcation is to expedite and simplify the presentation of evidence. (Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 888.)

Bifurcation may be appropriate even though some evidence concerning a plaintiff's injuries is also relevant to liability or causation. (Kaiser Steel Corp. v. Westinghouse Electric Corp. (1976) 55 Cal.App.3d 737, 746, superseded by statute on other grounds as stated in Billings v. Edwards (1981) 120 Cal.App.3d 238.)

1. Bifurcation Will Promote an Orderly and Efficient Trial

The Court finds that bifurcation will promote the orderly and efficient presentation of this case.

The liability and causation issues are substantial and

potentially dispositive. They include, among other matters, driver conduct and comparative fault, accident reconstruction, the condition and performance of the rear underride guard, product-liability issues, and whether the alleged condition, design, position, or performance of the underride guard caused or enhanced the occupants' injuries.

The damages issues are themselves extensive. They include substantial medical and life-care evidence, future medical and attendant-care claims, vocational and lost-earning-capacity evidence, economic testimony, noneconomic damages, and wrongful-death damages.

If Plaintiffs do not establish liability and causation against one or more defendants in Phase One, trial of some or all of these damages issues may be unnecessary. Even if a damages phase ultimately is required, separating the valuation of damages from the liability and causation questions will simplify the presentation of evidence and assist the jury in considering the distinct issues presented.

The Court therefore finds that bifurcation promotes judicial economy and efficiency within the meaning of Code of Civil Procedure section 598.

2. Phase One — Liability and Causation

Phase One shall determine liability and causation.

Phase One shall include, as applicable:

the
conduct and comparative fault of the drivers and other persons or entities
whose fault is properly submitted to the jury;

accident
reconstruction and collision mechanics;

the
condition, design, position, operation, maintenance, modification,
replacement, and performance of the rear underride guard to the extent
relevant to the claims and defenses;

applicable

product-liability and negligence issues;

the

mechanism and causation of the occupants' injuries;

whether

the alleged condition, design, position, or performance of the rear

underride guard caused or enhanced any injury or death; and

allocation

of fault, as appropriate.

The Court is not bifurcating injury causation from

liability.

3. Injury Evidence Relevant to Liability or Causation

Remains Admissible in Phase One

The Court recognizes Plaintiffs' contention that evidence

concerning the nature and mechanism of the injuries bears upon their theory

that the Acura underrid the truck and that the alleged condition or performance

of the rear underride guard caused or enhanced the resulting injuries.

The bifurcation order shall not be construed to

prevent Plaintiffs from presenting otherwise admissible injury or medical

evidence necessary to prove that theory.

Likewise, Defendants may present otherwise admissible

evidence tending to establish that the injuries resulted from the forces

generated by the collision itself, would have occurred regardless of the

configuration or performance of the underride guard, or otherwise bear upon

liability or causation.

Accordingly, evidence concerning an occupant's injuries may

be presented during Phase One to the extent otherwise admissible and relevant

to:

accident

or collision mechanics;

underride
or intrusion;

biomechanics;

injury
mechanism;

medical
or injury causation;

whether
an alleged defect or other condition caused or enhanced an injury or
death;

whether
the injuries would have occurred regardless of the alleged condition of
the underride guard; or

a
witness's ability to perceive, recall, or testify concerning the events at
issue.

Evidence does not become inadmissible in Phase One merely
because it also may be relevant to damages.

The Court will resolve particular evidentiary disputes as
they arise based upon the purpose for which the evidence is offered and the
applicable rules of evidence.

4. Phase Two — Amount of Recoverable Damages

If necessary following the Phase One verdict, Phase Two
shall determine the nature, extent, and amount of recoverable damages.

Evidence whose purpose is solely or principally to establish
the monetary value or extent of recoverable damages shall generally be reserved
for Phase Two.

Subject to specific evidentiary rulings, Phase Two includes matters such as:

the
amount and reasonableness of recoverable medical expenses;

future
medical expenses;

life-care-plan
costs;

future
attendant or household-care expenses;

lost
earnings and lost earning capacity;

vocational
and economic evidence directed to the amount of loss;

present-value
calculations;

detailed
evidence directed to noneconomic damages; and

evidence
concerning the nature and extent of recoverable wrongful-death loss where
offered for purposes of valuing damages.

This division is not intended to establish a rigid
evidentiary boundary. Where particular evidence bears materially upon both
injury causation and damages, the Court will determine its admissibility in
Phase One based upon its relevance to the liability and causation issues then
before the jury.

5. Plaintiffs' Evidentiary-Overlap Argument Does Not
Require a Unitary Trial

The Court has considered Plaintiffs' contention that liability and damages are intertwined because evidence concerning the occupants' injuries bears upon accident mechanics and the alleged enhanced-injury theory.

The Court agrees that some injury evidence bears upon liability and causation. The Court therefore does not exclude such evidence from Phase One.

The existence of that evidentiary overlap, however, does not require that the jury simultaneously hear the substantially broader evidence directed solely to determining the monetary amount of damages.

The appropriate distinction in this case is between evidence concerning what caused the injuries and whether defendants caused or enhanced them, which may be presented in Phase One, and evidence directed principally to determining the monetary value of those injuries and losses, which shall be reserved for Phase Two.

The Court therefore finds that the overlap identified by Plaintiffs can be accommodated without sacrificing the efficiencies afforded by bifurcation.

6. Same Jury; No Determination Concerning the Merits

Both phases, if necessary, shall be tried before the same jury.

Nothing in this ruling constitutes a determination concerning the merits of any claim or defense, the comparative fault of any person or entity, whether the rear underride guard was defective or otherwise inadequate, whether any modification or replacement occurred, or whether the condition or performance of the underride guard caused or enhanced any injury.

Those matters remain for determination based upon the evidence presented at trial.

RULING

The motion to bifurcate is GRANTED.

Trial shall proceed as follows:

Phase One: Liability and causation, including comparative fault, accident mechanics, product-liability and negligence issues, and whether any alleged condition, design, position, operation, modification, replacement, maintenance, or performance of the rear underride guard caused or enhanced the injuries or death.

Phase Two: If necessary, the nature, extent, and amount of recoverable damages.

Evidence relevant to liability or causation is not excluded from Phase One merely because it also concerns Plaintiffs' injuries. Evidence directed solely or principally to the valuation of damages shall be reserved for Phase Two, subject to further evidentiary rulings by the Court.

The parties shall meet and confer concerning the Phase One special verdict form and jury instructions consistent with this ruling.